

24STLC09462 24STLC09462

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-07-28

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Case Number: 24STLC09462 Hearing Date: July 28, 2026 Dept: 25

HEARING DATE: Tues. July 28, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Richardson

v. Lewis, et al. COMP. FILED: 12-27-24

CASE NUMBER: 24STLC09462

NOTICE: OK

PROCEEDINGS: MOTION

TO VACATE ORDER OF DISMISSAL

MOVING PARTY: Plaintiff Richard D. Richardson

RESP. PARTY: None

MOTION TO VACATE

DISMISSAL

(Code Civ. Proc., § 473(b))

TENTATIVE RULING:

The Court

GRANTS Richardson's motion to vacate the court-ordered dismissal for failure to appear at trial.

The June 26,

2026 dismissal is hereby SET ASIDE AND VACATED.

Pursuant to Code of Civil Procedure section 473, subdivision (c)(1)(A), the Court imposes a penalty of \$500 on Richardson's counsel, payable to the Court within 30 days of this order.

Richardson is to give notice.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None
filed as of July 22, 2026 ☐ Late ☒
None

REPLY: None
filed as of July 22, 2026 ☐ Late ☒
None

ANALYSIS:

Richard D. Richardson sued Everick Frances Lewis and Charles Lewis. Richardson served Charles, but failed to serve Everick for around a year and a half. Consistent with this lack of diligence, Richardson's counsel failed to appear for the June 26, 2026 non-jury trial. The Court ordered Richardson's complaint dismissed without prejudice pursuant to Code of Civil Procedure section 581, subdivision (b)(3). Only then did Richardson file proof of service on Everick—along with a motion seeking relief under Code of Civil Procedure section 473, subdivision (b)'s mandatory attorney-fault provision.

A

motion pursuant to the mandatory relief provision of Code of Civil Procedure section 473, subdivision (b), must be (1) timely, (2) in proper form, and (3) accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect. (Code Civ. Proc., § 473, subd. (b).) A court must grant relief if the party satisfies those requirements, unless the court finds that the default or dismissal was not actually caused by the attorney's fault. (Ibid.)

Richardson's motion, filed on June 29, 2026, satisfies each of those requirements. His counsel declares that the failure to appear was not Richardson's fault but the result of counsel's "sole mistake and clerical neglect." Richardson's counsel further attests that his "firm's recent and comprehensive transition to a digitized, cloud-based data management system caused . . . the deadlines for service on [Everick] and the hearing date for the trial [to be] inadvertently omitted from the digital tracking system." The Court observes that this is not the first time that this law firm has advanced this excuse for its failure to act in a timely fashion.

And while Richardson's motion is not accompanied by papers curing the lapse that led to the dismissal, Richardson represents to the Court that he "is prepared to proceed with the diligent prosecution of this case, including the immediate service of the Complaint" on Everick and Charles—which has already been done. The Court accepts that representation. (See *Carmel, Ltd. V. Tavoussi* (2009) 175 Cal.App.4th 393, 401–402; *Austin v. Los Angeles Unified School Dist.* (2016) 244 Cal.App.4th 918, 933.)

Accordingly,
the Court GRANTS Richardson's motion.
The June 26, 2026 dismissal is hereby SET ASIDE AND VACATED.

Pursuant to Code of Civil Procedure section 473, subdivision (c)(1)(A), the Court imposes a penalty of \$500 on Richardson's counsel, payable to the Court within 30 days of this order.

A trial setting conference in this matter is set for Thursday, October 1, 2026 at 9:30 a.m. in Department 25 of the Spring Street Courthouse. The Court also ORDERS

Richardson to SHOW CAUSE, on Thursday, October 1, 2026 at 9:30 a.m. in Department 25 of the Spring Street Courthouse why no default has been entered against either Charles or Everick Lewis, and further ORDERS Richardson to SHOW CAUSE, at the same time and place, why Richardson's counsel should not be sanctioned up to \$250.00 for failure to timely enter those defaults. (Cal. Rules of Court, rules 3.110(g), 3.110(i).) If either defendant files a responsive pleading, it will be sufficient to discharge the two orders to show cause as to that defendant only.

Richardson is to give notice.